

HOUSE BILL 1541

By Atchley

AN ACT to amend Tennessee Code Annotated, Title 29,
Chapter 20; Title 38, Chapter 8 and Title 39,
Chapter 17, relative to company police agencies.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 38, Chapter 8, is amended by adding
the following as a new section:

38-8-137. Company police agency authorization and operational standards.

(a) A qualified company police agency may operate within the confines of the
company's associated properties located in this state.

(b) Company police officers may operate under a company police agency and
shall follow all standards and requirements set forth by the peace officer standards and
training (POST) commission.

(c) In order to qualify for the establishment of a company police agency under
this section, a company must employ a minimum of three thousand (3,000) individuals
annually and have an annual attendance of at least three million (3,000,000) visitors to
its properties.

(d) A company police agency is vested with full police powers, including, but not
limited to, the authority to:

- (1) Enforce all applicable federal, state, and local laws;
- (2) Effectuate arrests and detain individuals in accordance with due
process;
- (3) Carry firearms and utilize law enforcement equipment in the course of
duty;

(4) Conduct investigations related to criminal activity occurring within its jurisdiction;

(5) Provide emergency response services and coordinate with public safety agencies; and

(6) Provide personal protection details for dignitaries, high-profile visitors, and company executives within its jurisdiction.

(e) The jurisdiction of a company police agency is limited to the property owned, leased, or otherwise controlled by the company and its affiliates, as defined by contract or corporate ownership, unless otherwise provided by interagency agreement or mutual aid contract.

(f) The company police agency shall operate under a defined command structure to ensure accountability, supervision, and operational efficiency. The command structure shall include the following ranks:

(1) Chief of company police;

(2) Captain;

(3) Lieutenant;

(4) Sergeant; and

(5) Patrol officer.

(g) All company police officers appointed by a company to a company police agency shall:

(1) Be certified by the POST commission;

(2) Meet or exceed all training and in-service training requirements applicable to full-time law enforcement officers in the state;

(3) Maintain active certification in CPR, first aid, and the use of automated external defibrillators (AEDs); and

(4) Complete specialized training in hospitality-based de-escalation, crowd control, multi-agency emergency response, and active threat mitigation.

(h) The mission of a company police agency is to protect life and property, ensure the safety of all guests and employees, and enhance the public's experience through professional, ethical, and community-focused law enforcement service.

(i) A company police agency shall cooperate fully with local, county, state, and federal law enforcement and emergency service providers. A company police agency may enter into mutual aid agreements for coordinated responses to incidents of significance.

(j) This section does not limit or interfere with the authority of any state or local law enforcement agency operating within the same geographic area, nor does it create a cause of action against the state or any subdivision thereof.

(k)

(1) Notwithstanding another law to the contrary, when a POST-certified company police officer is acting within the scope of the officer's official duties and enforcing the criminal laws of this state, the officer is entitled to the protections of qualified immunity to the same extent as any other duly commissioned law enforcement officer.

(2) When such officers are engaged solely in the enforcement of company rules, policies, or regulations that are not state law, liability for any alleged acts or omissions are governed by the Tennessee Governmental Tort Liability Act, compiled in title 29, chapter 20, or other applicable tort law.

SECTION 2. Tennessee Code Annotated, Section 29-20-102(3), is amended by adding the following as a new subdivision:

(E) "Governmental entity" also means a company police agency, created pursuant to § 38-8-137.

SECTION 3. The heading in this act is for reference purposes only and does not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the heading in any compilation or publication containing this act.

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.